

Module 5: Reconstruction and the Law

EDUC 219 - Howard University

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1 Module overview

This module examines Reconstruction as a period of major political, legal, social, and educational transformation following the Civil War. We will consider emancipation, citizenship, the Reconstruction Amendments, Freedmen's education, the growth of public schooling, and the continuing struggle over who would have access to rights, resources, and educational institutions.

The module emphasizes the relationship between law and schooling. Reconstruction created new possibilities for African American citizenship, political participation, literacy, community institution building, and public education. At the same time, those possibilities were contested and restricted through violence, policy, legal decisions, and the reassertion of white supremacy.

2 Guiding questions

- How did emancipation transform the meaning of citizenship, education, work, family, and community?
- What did the Thirteenth, Fourteenth, and Fifteenth Amendments establish, and what limits remained?
- Why was education central to African American freedom struggles during Reconstruction?
- What roles did Freedmen's schools, churches, mutual-aid organizations, teachers, families, and communities play in expanding literacy and schooling?
- How did state governments, federal institutions, and local communities shape public education after the Civil War?

- How did racial violence, political backlash, disenfranchisement, and legal change constrain Reconstruction-era educational gains?
- How does Reconstruction help us understand the legal and educational context of *Plessy v. Ferguson*?

3 Key concepts

- Emancipation
- Reconstruction
- Citizenship
- Reconstruction Amendments
- Equal protection
- Freedmen's education
- Public education and state responsibility
- Literacy and freedom
- Black institution building
- Racial violence and political backlash
- Disenfranchisement
- Law, rights, and educational access

4 Readings and activities

- Givens (2021), Chapter 5
- Additional readings and media on Canvas
- Archival research presentations and findings
- Historical-timeline and database contributions
- Trial-group research coordination
- Preparation for the midterm examination

Trial connection

Reconstruction provides essential historical and constitutional context for *Plessy v. Ferguson*. As you prepare for the trial reenactment, consider how the Thirteenth and Fourteenth Amendments, citizenship, public accommodations, racial violence, education, and state power shaped the legal arguments and social conditions surrounding the case.